



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 07/22/2026 - 09:00 AM

07/13/2026

9:51 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

Tentative Ruling:

APPEARANCE OPTIONAL

Decedent died December 20, 2025. This Petition for Order to Produce Will and Damages was filed February 13, 2026, alleging that decedent's spouse, the purported custodian of his will, had not lodged it within the statutory 30-day time frame. That date would have been January 20, 2025. The will was lodged April 7, 2026. As such, any request in the petition to order decedent's spouse to produce the will is moot. Acting as a court of equity, the Court can certainly understand why a spouse, who just lost her husband, might not file his will within 30 days of his death, what with all of the other priorities as well as emotional impact taking priority.

Petitioner seeks damages, but that request is unsupported by billing records and the Attachment A referenced in the supplemental filed July 15, 2026. The Court is not inclined to grant any alleged damages as it has not been proven that petitioner suffered any damages in the short period of time from January 20th until April 7th.

However, if petitioner still seeks monetary damages, the matter is CONTINUED to November 10, 2026 at 9:00 am for Petitioner to file and serve Exhibit A that appears to be missing from her Declaration filed on 7/15/2026, and for Petitioner to file billing records and receipts for the damages she is requesting. The Petitioner should attach a copy of the trust of Eleanor Falstrom for which petitioner is the trustee. If any damages are awarded, they will not include any fees following the lodging of the will.

26-PRO-00198	The Purported 2000 James W. Norman and Mabel Kay Norman Revocable	The Petition seeks the following relief pursuant to Probate Code sections 850, 859, 17200, 17206, and 17211:
Line 12	Petitioner: Jones, LaVerne Norman (Pro Se) Respondent: Norman, Mabel Kay	Petition Hearing

Tentative Ruling:

NO APPEARANCE (Zoom allowed)

Petition is CONTINUED to November 13, 2026 at 9:00 am for Petitioner to file a proof of service/notice of hearing that complies with Probate Code 851(a) and (c). Specifically, DE-115 should be used, not DE-120, 30 days notice must be given, a copy of the petition and any supplemental documentation thereto must be served, and the notice of hearing must include the required language contained in PC 851(c). The defective proof of service filed also does not list the Respondent, and names an attorney, but no information as to whom that attorney represents. Petitioner filed her initial pleading on 2/13/2026, and then filed what she labeled as "Memorandum



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of Points and Authorities" and a Declaration on 7/06/2026. All parts of her petition must be served. No valid proof of service is on file for any of these documents.

26-PRO-00271	IN RE THE THOMAS F. MANDERS, JR., REVOCABLE TRUST, DATED APRIL 10, 2015	PETITION TO RECOVER TRUST PROPERTY AND MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF
Line 13	Petitioner: TORRES, HEATHER F. (ZELL, DENNIS S.) Decedent: MANDERS, JAN B Decedent: MANDERS, THOMAS F	Petition Hearing

Tentative Ruling:

APPEARANCE ORDERED

Petition to Recover Trust Property is silent as to why San Mateo County is the proper venue. The court has reviewed documents including the death certificate of Thomas Manders Jr, which shows that he resided in San Mateo County at the time of his death, as did petitioner herein. The Court also reviewed the Trust, which was executed by both the decedent and the petitioner in Burlingame California, which is also in San Mateo County. As such, the Court can infer that venue is proper, but petitioner must affirmatively allege that the Trust is being administered in San Mateo County. That may be done by submitting a declaration at the time of hearing. The Petition also doesn't include any prayer for relief, but the Court has reviewed the proposed order filed July 13, 2026. Petitioner to appear and confirm accuracy of proposed order. Counsel is reminded that both of these issue are required to be set forth in the petition itself.